

Central Valley Regional Water Quality Control Board

25 May 2017

WDID# 5A041020001

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NOTICE OF APPLICABILITY, WATER QUALITY ORDER 2014-0153-DWQ-R5234, CASA DEL REY, WASTEWATER TREATMENT AND DISPOSAL SYSTEM, BUTTE COUNTY

On 11 May 2017 Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff inspected the wastewater facilities at Casa Del Rey Home Owners Association (Casa Del Rey HOA) (hereafter "Discharger") located at 4333 Pentz Road, Butte County. Based on the site inspection and a case file review, the facility treats and disposes of less than 100,000 gallons of wastewater per day, and is therefore eligible for coverage under the general and specific conditions of State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). This letter serves as formal notice that the General Order is applicable to your facility and the wastewater discharge described below. You are hereby assigned General Order enrollee number 2014-0153-DWQ-R5234 for your facility.

A copy of the General Order is enclosed. You can also find the General Order on the State Water Board's website at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which prescribes mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements that are applicable to your treatment and disposal methods must be completed in accordance with the sections of the General Order and the attached Monitoring and Reporting Program (MRP). This MRP was developed after consideration of your treatment system infrastructure and site conditions described in the attached Technical Memorandum.

REGULATORY BACKGROUND

The Discharger's wastewater treatment and disposal system is currently regulated under the individual Waste Discharge Requirements (WDR) Order 97-230. The WDR was adopted on 24 October 1997 and is due for an update.

FACILITY AND DESCRIPTION

Casa Del Rey HOA owns and operates a wastewater treatment and disposal Facility which serves a planned development of approximately 56 condominium type units. The Facility is located in central Butte County in Section 31, T22N, R4E, and Section 6, T21N, R4E, MDB&M with surface water drainage to Dry Creek, an indirect tributary of the Sacramento River, as shown on Attachment A. Casa Del Rey HOA has been established as the entity responsible for the operation and maintenance of the wastewater treatment and disposal system for the Facility. The community system consists of septic tanks, both gravity, and pressurized collection lines, pump stations, three effluent dosing tanks, and discharges about 4,500 gpd to a community leachfield.

This is an existing facility; therefore enrollment under the General Order is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to California Code of Regulations, title 14, section 15301 which applies to ongoing or existing projects.

FACILITY SPECIFIC REQUIREMENTS

The Discharger will maintain exclusive control over the discharge, and shall comply with the terms and conditions of this NOA and the General Order 2014-0153-DWQ-R5234, with all attachments.

The General Order states in Section B.1.L that the Discharger shall comply with the setbacks as described in Table 3. The following applicable setback requirements from Table 3, for which the Discharger shall comply, are summarized below:

Table 3: Summary of Wastewater System Setbacks

Site Specific Applicable Setback Requirements					
Equipment or Activity	Domestic Well	Flowing Stream ^a	Ephemeral Stream Drainage ^b	Property Line	Lake or Reservoir ^d
Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System	150 ft. ^y	50 ft. ^c	50 ft.	5 ft. ^{c, z}	200 ft. ^w
Leach Field ^f	100 ft. ^{o, c}	100 ft. ^c	50 ft.	5 ft. ^c	200 ft. ^w

N/A denotes Not Applicable, as the defined feature is not found within the general area of the facility.

- ^a A flowing stream shall be measured from the ordinary high water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.
- ^b Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snow-melt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage features. The ephemeral stream shall be a "losing stream" (discharging surface water to groundwater) at the proposed wastewater system site.
- ^c Setback established by California Plumbing Code, Table K-1.
- ^d Lake or reservoir boundary measured from the high water line.
- ^e Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection.
- ^f Leach Field includes all subsurface dispersal systems, including mound systems except seepage pits.
- ^o California Well Standards, part II, section 8. Site-specific conditions may allow reduced setback or require an increased setback. See discussion in Well Standards.
- ^w Setback established by the Onsite Wastewater Treatment System Policy, section 7.5.5.

- y Setback established by Onsite Wastewater Treatment System Policy, section 7.5.6.
z Collection system to property line setback is not applicable.

Failure to comply with the requirements in the documents could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, MRPs, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to:

centralvalleyredding@waterboards.ca.gov.

Documents that are 50MB or larger should be transferred to a disc and mailed to the appropriate regional water board office, in this case 364 Knollcrest Drive, Suite 205, Redding, CA 96002.

To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15

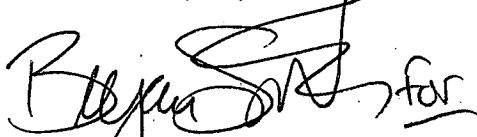
WDID: 5A041020001

Facility Name: Casa Del Rey HOA

Order: 2014-0153-DWQ-R5234

Please note that WDRs Order No. 97-230 is proposed to be rescinded at the 10/11 August 2017 meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, coverage for your facility under the General Order shall become applicable subject to this Notice of Applicability.

If you have any questions regarding submitting an updated report of waste discharge, making changes to your permitted operations, compliance or enforcement please contact Ron S. Falkowski at (530) 224-3227, rsfalkowski@waterboards.ca.gov, or the footer address.


PAMELA C. CREEDON
Executive Officer

RSF: ab

Attachments: Attachment A – Site Location Map
Attachment B – Facility Map
Technical Memorandum
Monitoring and Reporting Program
Water Quality Order 2014-0153-DWQ

Chris Copeland
Casa Del Rey HOA

- 4 -

25 May 2017

cc (w/o enc.): Patrice Sorenson, Hydrotech Solutions, Chico
Tim O'Brien, State Water Board, Sacramento
Butte County Environmental Health Department, Chico
Patrick Pulupa, SWRCB, Office of Chief Counsel, Sacramento